

26TRCV01622 26TRCV01622

County: los-angeles

Division: Civil Law and Motion

Department: B

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Case Number: 26TRCV01622 Hearing Date: September 17, 2026 Dept: B

Moving Parties: Plaintiff Leslie H.

Ponciano, as trustee of the Ponciano Family Trust dated November 9, 2016

Responding

Party: None

(1)

Motion to Compel Responses to Interrogatories,

Set One

(2)

Motion to Compel Initial Responses

to Requests for Production, Set One

(3)

Motion to Deem Facts Admitted

The Court considered the moving papers. No opposition was filed.

RULING

The motions

are GRANTED upon payment of additional filing fee. See Order below.

BACKGROUND

On May

6, 2026, plaintiff Leslie H. Ponciano, as trustee of the Ponciano Family Trust

dated November 9, 2016 filed an unlawful detainer complaint against Erin Faragalla based on a three-day notice to pay rent or quit.

On

June 17, 2026, defendant filed an answer.

LEGAL

AUTHORITY

Interrogatories

If a

party to whom interrogatories are directed fails to serve a timely response, the propounding party may move for an order compelling responses and for a monetary sanction. CCP §2030.290(b). The statute contains no time limit for a motion to compel where no responses have been served. All that need be shown in the moving papers is that a set of interrogatories was properly served on the opposing party, that the time to respond has expired, and that no response of any kind has been served. *Leach v. Superior Court* (1980) 111 Cal. App. 3d 902, 905-906.

Request

for Production of Documents

Where

there has been no timely response to a CCP §2031.010 demand, the demanding party must seek an order compelling a response.

CCP §2031.300. Failure to timely

respond waives all objections, including privilege and work product. Thus, unless the party to whom the demand was directed obtains relief from waiver, he or she cannot raise objections to the documents demanded. There is no deadline for a motion to compel responses.

Likewise, for failure to respond, the moving party need not attempt to resolve the matter outside court before filing the motion. Where the motion seeks only a response to the inspection demand, no showing of "good cause" is required. *Weil & Brown, Civil Procedure Before Trial*, 8:1487.

Request

for Admissions

Pursuant

to CCP § 2033.280(b), a party may move for an order that the genuineness of any

documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction under Chapter 7 (commencing with Section 2023.010). "Failure to timely respond to RFA does not result in automatic admissions. Rather, the propounder of the RFA must 'move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction' under § 2023.010 et seq." Weil & Brown, Civ. Proc. Before Trial, ¶ 8:1370, citing CCP § 2033.280(b). The court "shall" grant the motion to deem RFA admitted, "unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220." CCP § 2033.280(c).

DISCUSSION

Plaintiff Leslie H. Ponciano, as trustee of the Ponciano Family Trust Dated November 9, 2016, requests that the Court compel defendant Erin Faragalla to respond to plaintiff's initial set of form interrogatories (general and unlawful detainer), special interrogatories, and request for production of documents and to deem admitted the matters in plaintiff's requests for admissions.

The Court notes that plaintiff improperly combined the form interrogatories with the special interrogatories and paid only one reservation fee.

Plaintiff asserts that June 30, 2026, plaintiff served written discovery on defendant. Responses were due on July 7, 2026. Plaintiff's counsel provided an extension to respond to August 18. As of the filing date of the motions, plaintiff's counsel had not received responses.

The Court finds that plaintiff properly served the written discovery requests and that defendant failed to timely serve responses.

The motions are GRANTED.

Sanctions

Under CCP § 2023.030(a), “[t]he court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney’s fees, incurred by anyone as a result of that conduct. . . . If a monetary sanction is authorized by any provision of this title, the court shall impose that sanction unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” Under CCP § 2023.010, an example of the misuse of the discovery process is “(d) Failing to respond or to submit to an authorized method of discovery.”

Sanctions

are mandatory in connection with motions to compel responses to interrogatories and requests for production of documents against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel unless the court “finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” CCP §§ 2030.290(c), 2031.300(c).

Cal. Rules of Court, Rule 3.1348(a) states: “The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed.”

Plaintiff requests sanctions against defendant and defendant’s counsel of record, Joseph Kellener of Dignity Law Group, APC, jointly and severally, in the amount of \$3742.50 (\$475/hr., filing fees). The Court finds that \$1605 (\$475/hr. x 3 hrs., \$180 in filing fees) is a reasonable amount to be imposed against defendant and defendant’s attorney of record, jointly and severally, in total for the three motions.

ORDER

The motions
are GRANTED upon payment of additional filing fee.

Defendant

Erin Faragalla is ordered to respond without objections to plaintiff’s Form Interrogatories-General, Set One, Form Interrogatories-Unlawful Detainer, Set

One, and First Set of Special Interrogatories, within twenty days.

Defendant

Erin Faragalla is ordered (1) to serve on plaintiff a verified response without objections to plaintiff's First Set of Request for Production of Documents, and (2) to produce all documents and things in defendant's possession, custody, or control, which are responsive to plaintiff's request, within seven days.

The

Court orders the truth of the matters in plaintiff's First Set of Request for Admissions be deemed admitted against defendant.

The

Court orders that defendant and defendant's attorney of record, Joseph Kellener of Dignity Law Group, APC, jointly and severally, pay sanctions to plaintiff in the amount of \$1605, in total for all three motions within thirty days.

Plaintiff

is ordered to give notice of ruling.